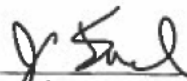


FIRST ENDORSEMENT

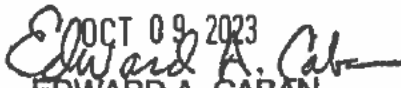
Executive Director Jonathan Darche, Civilian Complaint Review Board to Deputy Commissioner Amy Litwin, Department Advocate's Office, February 10, 2023. Contents noted. Recommend approval of the negotiated plea agreements in DADS No. 2022-24757 and 2022-24729 against Police Officer John Migliaccio, Tax Registry No. 964169. Both cases were conferenced on October 6, 2022, before Assistant Deputy Commissioner of Trials Jeff Adler, who accepted both guilty pleas and approved the negotiated penalty of the forfeiture of fifteen (15) vacation days for DADS No. 2022-24757 and the forfeiture of forty (40) vacation days for DADS No. 2022-24729, for a total penalty of the forfeiture of fifty-five (55) vacation days.

Assistant Deputy Commissioner of Trials Jeff Adler requested a re-conference regarding DADS No. 2022-24729. The case was re-conferenced on October 25, 2022. For DADS No. 2022-24729, Assistant Deputy Commissioner of Trials Jeff Adler re-accepted the guilty plea but rejected the negotiated penalty of the forfeiture of forty (40) vacation days. ADCT Adler recommended the forfeiture of twenty (20) vacation days for DADS No. 2022-24729. This penalty would run consecutive with DADS No. 2022-24757 for a total recommended penalty of the forfeiture of thirty-five (35) vacation days.



Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board

DISAPPROVED

OCT 09 2023

EDWARD A. CABAN
POLICE COMMISSIONER



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2022-24757
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, MIGLIACCIO	FIRST JOHN	M.I. S	COMMAND HOUSING PSA 7
SHIELD NO. 25698	TAX REGISTRY NO. 964169	SOCIAL SECURITY NO.		DATE APPOINTED 07/05/2017
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer John MIGLIACCIO, on or about June 4, 2020, at approximately 1956, while assigned to PSA 7 and on duty, in the vicinity of East 136th Street Bronx County, abused his authority as a member of the New York City Police Department, in that he damaged an individual's property, in that he got on top of an individual's car and damaged the windshield without sufficient legal authority.	PLEADED GUILTY	VACATION DAYS 15.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Police Officer John MIGLIACCIO, on or about June 4, 2020, at approximately 1956, while assigned to PSA 7 and on duty, in the vicinity of East 136th Street, Bronx County, wrongfully used force, in that he struck individuals with a baton without police necessity.	PLEADED GUILTY	

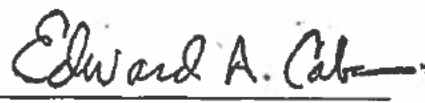
 5/8/23
FIRST DEPUTY COMMISSIONER DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)

 10/9/23
POLICE COMMISSIONER DATE



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2022-24729
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, MIGLIACCIO	FIRST JOHN	M.I. S	COMMAND HOUSING PSA 7
SHIELD NO. 25698	TAX REGISTRY NO. 964169	SOCIAL SECURITY NO.	DATE APPOINTED 07/05/2017	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer John Migliaccio, on or about June 4, 2020, at approximately 1945, while assigned to PSA 7 and on duty, in the vicinity of Brook Avenue and East 136th Street, Bronx County, wrongfully used force, in that he wrongfully used pepper spray against § 87(2)(b) without police necessity.	PLEADED GUILTY	VACATION DAYS 40.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Police Officer John Migliaccio, on or about June 4, 2020, at approximately 1945, while assigned to PSA 7 and on duty, in the vicinity of Brook Avenue and East 136th Street, Bronx County, wrongfully used force, in that he wrongfully used pepper spray against § 87(2)(b) without police necessity.	PLEADED GUILTY	
3 . Police Officer John Migliaccio, on or about June 4, 2020, at approximately 1945, while assigned to PSA 7 and on duty, in the vicinity of Brook Avenue and East 136th Street, Bronx County, wrongfully used force, in that he wrongfully used pepper spray against § 87(2)(b) without police necessity.	PLEADED GUILTY	
4 . Police Officer John Migliaccio, on or about June 4, 2020, at approximately 1945, while assigned to PSA 7 and on duty, in the vicinity of Brook Avenue and East 136th Street, Bronx County, wrongfully used force, in that he wrongfully used pepper spray against individuals without police necessity.	PLEADED GUILTY	

 5/8/23
FIRST DEPUTY COMMISSIONER DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)

 10/9/23
POLICE COMMISSIONER DATE

FOURTH ENDORSEMENT

COMMANDING OFFICER, POLICE COMMISSIONER'S OFFICE to First Deputy Commissioner, October 9, 2023. Please note the Police Commissioner's **DISAPPROVAL** of the Third Endorsement and First Endorsement regarding Disciplinary Case Nos. 2022-24757 and 2022-24729 against Police Officer John Migliaccio, Tax No. 964169.

The Police Commissioner has reviewed the Civilian Complaint Review Board's (CCRB) recommended penalties regarding the substantiated allegations against Police Officer John Migliaccio and determined that the actions of Police Officer Migliaccio do not warrant the imposition of the proposed penalties.

In Disciplinary Case No. 2022-24757, Police Officer Migliaccio is charged with damaging an individual's vehicle and using his baton without police necessity. Video footage captures a volatile, chaotic, and fluid scene. Police Officer Migliaccio stated he climbed on top of the vehicle when he saw an officer fall and get dragged into the crowd. He stated he did this to gain a better vantage point to see if the police officer was injured. While on top of the vehicle, Police Officer Migliaccio was surrounded by protestors and admitted to swinging his baton at the hands of protestors so that they could not grab his ankles. Once the other officer was safe and secured, Police Officer Migliaccio stated he got off the car. According to CCRB, none of the civilians interviewed by CCRB identified Police Officer Migliaccio as making physical contact with them. Rather, they merely referenced "officers." CCRB did not provide any context for where in the timeline of events this video occurred, specifically, what was occurring right before it. Therefore, the conclusion that the use of the baton was improper is tenuous. CCRB determined in their investigation that the group of protestors were peaceful. However, the members of the service interviewed described a chaotic and violent scene where various objects and liquids were being thrown at the officers.

With respect to the allegation that he damaged the vehicle, the Police Commissioner believes there is no evidence of Police Officer Migliaccio's action of getting on top of the vehicle caused any damage to the vehicle's windshield. Given the number of civilians in the area and what was occurring at the moment, the link between Police Officer Migliaccio getting on top of the vehicle, and the damage to the vehicle is weak. Furthermore, from the interviews conducted, CCRB noted that Police Officer Malik McCloud, who has since retired, stated that "as he was getting off the car part of the middle of the front windshield broke." Even if we believe Police Officer Migliaccio damaged the vehicle, disciplinary action is not appropriate. If Police Officer Migliaccio damaged the vehicle, it was not intentional or with malice. This was a chaotic scene, where he went on top of the vehicle in an attempt to help another member of the service. As such, no disciplinary action will be taken for this allegation.

FIRST DEPUTY COMM.
REC'D OCT 10 2023 16:51

In Disciplinary Case No. 2022-24729, the Police Commissioner agrees that the use of pepper spray was improper. However, the Police Commissioner has determined that CCRB's application of the Department Disciplinary guidelines is improper. Police Officer Migliaccio's use of pepper spray was one fluid action, and should be analyzed as one event.

Therefore, the Police Commissioner directs that the Charges and Specifications in both matters against Police Officer Migliaccio be dismissed and issue a Schedule "B" Command Discipline with the forfeiture of ten (10) vacation days for the improper use of pepper spray. Additionally, Police Officer Migliaccio will receive no disciplinary action for the allegations that he damaged an individual's vehicle and wrongfully used force against individuals with a baton.

The Commanding Officer, Department Advocate shall ensure that a copy of the fully adjudicated Command Discipline is forwarded to this office expeditiously.

Forwarded for your necessary attention.



Anthony S. Marino
Deputy Chief

AM/m

FIFTH ENDORSEMENT

First Deputy Commissioner to Deputy Commissioner, Department Advocate, October 10, 2023. Contents noted. Please note the Police Commissioner's **DISAPPROVAL** of the First and Third Endorsement and **DIRECTION** of the Fourth Endorsement regarding Disciplinary Case Nos. 2022-24757 and 2022-24729 against Police Officer John Migliaccio, Tax #964169. The Police Commissioner directs that the Charges and Specifications in both matters against Police Officer Migliaccio be dismissed and that Police Officer Migliaccio be issued a Schedule "B" Command Discipline with the forfeiture of ten (10) vacation days for the improper use of pepper spray. Additionally, the Police Commissioner directs that Police Officer Migliaccio will receive no disciplinary action for the allegations that he damaged an individual's vehicle and wrongfully used force against individuals with a baton.

The Commanding Officer, Department Advocate shall ensure that a copy of the fully adjudicated Command Discipline is forwarded to the Police Commissioner's Office expeditiously.

Forwarded for your **NECESSARY ATTENTION**.



Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

TIK/pk

cc: Deputy Commissioner, Trials
Chief, Professional Standards